

****14.05.2021****

****Fine for GDPR Violation****

The National Supervisory Authority has completed an investigation into an individual and found violations of the provisions of Article 5 paragraph (1) letters a) and b) and paragraph (2), in relation to Article 6 paragraph (1), as well as the provisions of Article 13 paragraphs (1)-(3) and Article 32 paragraph (2) of the General Data Protection Regulation.

The individual, as the data controller, was sanctioned with an administrative fine in the total amount of 974.89 (equivalent to 200 EURO).

The investigation was initiated following the receipt of several complaints alleging that through the website <https://declaratieppr.ro>, by completing a form that generated a self-declaration necessary for leaving the residence during the state of emergency, certain personal data were processed, namely name, surname, parents' names, address, personal identification number, series and number of the identity document, actual residence address, place of travel, purpose of travel, and signature. During the course of the investigation, the National Supervisory Authority found that the data controller did not provide evidence that it processed personal data legally, collected and stored on the website <https://declaratieppr.ro>.

It was also found that it did not provide evidence that it ensured the information of the data subjects regarding the processing of their personal data collected on the same site.

Furthermore, the data controller (the individual) did not take adequate security measures to ensure that the file containing personal data of the data subjects was not subject to processing risks, particularly those generated accidentally or illegally, such as destruction, loss, alteration, unauthorized disclosure, or unauthorized access to personal data transmitted, stored, or otherwise processed.

****A.N.S.P.D.C.P.****